

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
Case No. CV2023-0312

Hearing Date: **April 10, 2026** **Department Eight** **1:30 p.m.**

Plaintiff Xinyao Zhou's motion for relief from order denying motion to compel and imposing sanction is **DENIED**. (Code Civ. Proc., § 473, subd. (b).) First, as to plaintiff's request for relief under section 473(b), plaintiff has failed to establish that this Court may relieve her of its January 20, 2026, order based on her misunderstanding of the law as a self-represented litigant. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543 ["Pro. per. litigants are held to the same standards as attorneys"]; see also *McClain v. Kissler* (2019) 39 Cal.App.5th 399, 416; Zhou decl., ¶¶ 19-23 & 27, Exhibit B.) Second, as to plaintiff's argument that the imposed sanction is disproportionate and unjust, plaintiff does not provide legal authority for the proposition that this Court has the power to vacate or reduce these sanctions. (See *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73-74.) Finally, as to plaintiff's request for relief under section 1008(a), plaintiff's declaration does not contain the required information. (Code Civ. Proc., § 1008, subd. (a).) Specifically, plaintiff's declaration does not state: (1) to what judge the previous application was made; and (2) what new or different facts, circumstances, or law are claimed to be shown. (*Ibid.*; see generally Zhou decl.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.